
Interview Details

Transcript of interview with [REDACTED]

Start – 2:30 p.m.

Victim: [REDACTED]

- [REDACTED] 23 years old at the time of the incident, is a black male, 5'9" tall, 155 pounds, with brown hair and brown eyes.
- [REDACTED] is employed by UPS as a [REDACTED]

CCRB Testimony

On April 21, 2015, [REDACTED] was interviewed at the CCRB regarding case #201502193.

On March 17, 2015, at approximately 3:0 p.m., [REDACTED] was dropped off at his workplace, the UPS facility at [REDACTED] in Queens, by his father. [REDACTED] scanned into the parking lot, walked through the building and clocked into work. [REDACTED] waits with his coworkers as he drinks a coffee, for his manager to begin a pre-meeting before their shift begins. When [REDACTED] spills his coffee, a coworker gave him a dollar so he could go to the vending machine to purchase another. As [REDACTED] walked towards the break room, he heard loud commotions from the entrance of the building but thought nothing of it. [REDACTED] explained that the entrance is near Bay 1, and he had been walking past Bay 9, which is approximately twenty feet away when he turned around to look at three men (PO1-3) who had entered the facility and were the source of the commotion. One of men (PO1) was screaming in the direction of [REDACTED]. At the time, [REDACTED] could not determine if PO1 was yelling at him. PO1 was cursing and yelling, "What now? What now?" and using the words "punk," "pussy," and "prick."

Aware now that PO1 was speaking to him, [REDACTED] asked, "Who are you?" PO1 continued to call [REDACTED] "every name in the book," as [REDACTED] denied knowing what the man was talking about. [REDACTED] told PO1, "You got the wrong guy I've never met you before." In this time, PO2 and PO3 did not speak at all. [REDACTED] noted that a crowd of employees and supervisors had begun to gather around PO1 and him. Then, [REDACTED] supervisor, [REDACTED] attempted to insert himself into the altercation to diffuse the situation.

PO1 went into [REDACTED] face and pulled out his shield. At this time, it was revealed that PO1-3 were officers. PO1 told [REDACTED] "Back the fuck up!" [REDACTED] put up his two hands in defeat and backed away from PO1 and [REDACTED]. PO1 returns to standing in front of [REDACTED] where he continues to curse [REDACTED] out. [REDACTED] could not recall the profane language PO1 used towards him except "prick" and "punk," and PO1 asking him, "What'chu gonna do now?" [REDACTED] told PO1 he did not know what he was talking about. Then, PO1 shoves [REDACTED] in the chest with two open palms, which caused him to "fly" backwards – his feet lifting from the ground – as he landed on the steel flatbed that was one step behind him, and roughly six inches from the ground.

[REDACTED] assisted [REDACTED] up from the ground as PO1-3 exited the building. [REDACTED] and [REDACTED] followed them outside, walking approximately ten feet behind the officers. [REDACTED] was able to capture a photograph of the officer's dark gray sedan, but did not have his camera's flash on to capture their license

Interview Details

plate number. Meanwhile, [REDACTED] approached PO1 and spoke with him. [REDACTED] attempted to talk to PO1 when he told him, “Yo, you got the wrong guy. You made a mistake,” but PO1 brushed [REDACTED] off and entered his vehicle to drive away.

[REDACTED] and [REDACTED] returned inside the building, where then alerted [REDACTED] the pre-load manager, who had no idea of the incident that had just transpired. [REDACTED] spoke with other superiors and they found out that the incident had occurred. [REDACTED] spent the remainder of the day writing testimonies. He went home and to the doctor’s the following day for pain to his chest and lower back, which caused him to miss four days of work.

Mediation was offered to [REDACTED] beginning at 14:50. [REDACTED] rejected mediation as he plans to file a lawsuit and believes a meeting with PO1 would be “a lot of spoken words” and that nothing would be accomplished by meeting with the officers.

Officers

PO1: Caucasian male (Italian), 6’2” tall, weighs 200-205 pounds, muscular build, grey eyes, blond beard, and 30-35 years old.

PO2: Caucasian male, 5’10” tall, slim build, and 25-30 years old.

PO3: Hispanic/black male, 5’10” tall, stocky build, and 25-30 years old.

Injuries

Chest pain and lower back pains

- [REDACTED] Hospital on 3/18/15

- [REDACTED]

- [REDACTED]

Additional Contact

[REDACTED]

End – 2:46 p.m.

Interview Details

Transcript of interview with [REDACTED]

Start – 3:22 p.m.

Witness: [REDACTED]

- [REDACTED] years old at the time of the incident, is a black male, 5'11" tall, 236 pounds, with black hair and brown eyes.
- [REDACTED] is employed by UPS as a [REDACTED].

CCRB Testimony

On May 4, 2015, [REDACTED] was interviewed at the CCRB regarding case #201502193.

On March 17, 2015, at approximately 3:09 a.m., [REDACTED] arrived at his place of employment, the UPS facility located at [REDACTED] in Queens. [REDACTED] clocked in at 3:10 a.m. and went to use the bathroom. After, he walked over to the bay where he works out of. [REDACTED] explained that [REDACTED] usually arrives around the same time he does, twenty minutes before the start of his shift, and grabs coffee from the break room. That morning, [REDACTED] had observed [REDACTED] walk towards the break room to make himself a cup of coffee. Then, while speaking with his coworker [REDACTED] [REDACTED] went to sit outside the bay area.

[REDACTED] heard a heated conversation from the wall behind him; when he peered around the wall, [REDACTED] observed [REDACTED] standing with his coffee in hand, speaking with three plainclothes officer three to four feet from him. [REDACTED] believed PO1-3 must have approached [REDACTED] as he was leaving the break room. [REDACTED] stood sideways to [REDACTED] with PO1 facing [REDACTED]. From where he stood, [REDACTED] could see PO1's face, yelling at [REDACTED]. PO2-3 were blocked from [REDACTED] view by PO1. [REDACTED] could not recall the context of what PO1 was saying to [REDACTED] but recalled [REDACTED] was not responding back. [REDACTED] only asked, "What's your problem? What did I do?" PO1 replied with "Fuck you," and yelled other obscenities at [REDACTED].

Then, their supervisor [REDACTED] approached [REDACTED] and PO1-3 to attempt to speak with PO1. PO1 pulled out his shield, which he had kept tucked away on a chain underneath his clothing, and told [REDACTED] to "step the fuck back." PO1 left his shield out on top of his clothes and [REDACTED] took one to two steps back while holding his hands up in the air in surrender. [REDACTED] did not make any further attempts at speaking with PO1-3 to diffuse the situation. [REDACTED] noticed PO1-3 had guns holstered to their hips.

PO1 appeared angry and pushed [REDACTED] backwards. [REDACTED] fell onto a flatbed that employees use to transport large packages (which has roughly three feet clearance from the ground). [REDACTED] observed that [REDACTED] tried not to fall on the cart but landed on it anyways, his back impacting the cart from the shove. [REDACTED] was not sure if [REDACTED] was dazed from the fall, but observed him stand up on his own. Then, PO1-3 exited the building.

[REDACTED] and others followed the officers outside. [REDACTED] observed PO1-3 drive away from the facility in a dark colored four-door sedan. [REDACTED] could not make out the make or model of the vehicle. [REDACTED] was unsuccessful in taking a picture of the officers' license plate. [REDACTED] also noted that the windows were tinted.

Interview Details

██████ noted that the officers had eluded security at the front of the entrance path on their way in and out of the building. ██████ explained that anyone can drive into parking lot without speaking to guards, but there is a walk path which anyone entering the building must walk past security. ██████ explained that officers had not spoken with the security officers, but had just walked past them, and did not show their shield or identify themselves. ██████ did not know which command officers came from.

Officers

PO1: Caucasian male, 6'1"-5" tall, muscular build, in his 30s, and in plainclothes.

PO2-3: Caucasian males in plainclothes.

Additional Contact

████████████████████
████████████████

End – 3:37 p.m.

Interview Details

Transcript for interview with PO RYAN SCANNELL

Start – 9:57 a m.

Subject Officer: PO RYAN SCANNELL

- *PO Ryan Scannell is a Caucasian male, 6'0" tall, weighs 190 pounds, with brown hair and hazel eyes, and was 30 years old at the time of the incident.*
- *PO Ryan Scannell worked from 11:15 p.m. on March 16, 2015 to 7:50 a.m. on March 17, 2015. He was in plainclothes and assigned to anti-crime in the 105th Precinct with PO Ryan Hoffman and PO James St. Germain in an unmarked car.*

Memo Book

PO Scannell has no entries in his memo book regarding this incident.

CCRB Testimony

On June 17, 2015, PO Ryan Scannell was interviewed at the CCRB in regards to case #201502193.

PO Ryan Scannell could not recall what he was doing while on duty on March 17, 2015, at 3:30 a.m. It was explained to PO Scannell that officers were caught on security footage driving in an unmarked RMP in pursuit of another vehicle. Later, officers pull into the UPS facility at [REDACTED] in Queens in search of an individual. PO Scannell stated that thus far, the recount of events did not sound familiar to him. PO Scannell explained that he has pulled vehicles over into the UPS facility but has never walked into the facility itself during the course of an investigation. A photograph of [REDACTED] was shown to PO Scannell and he did not recognize [REDACTED].

PO Scannell denied calling a civilian a punk, pussy, or prick, and did not hear another officer call a civilian a punk, pussy, or prick. PO Scannell denied telling a civilian to “back the fuck up” and did not hear another officer tell a civilian to do so. PO Scannell denied pushing anyone to the ground and did not observe another officer push an individual to the ground.

PO Scannell explained that had any members of his anti-crime made an arrest that night, there would have been a likelihood that they would have switched how they were paired off. However, PO Scannell did not recall any members of the anti-crime team making any arrests that night.

PO Scannell reviewed video footage of the incident but was unable to identify any of the officers shown walking past the camera frame.

End – 10:08 a m.

Interview Details

Transcript for interview with PO JAMES ST. GERMAIN

Start – 10:10 a.m.

Witness Officer: PO JAMES ST. GERMAIN

- *PO James St. Germain is a black male, 5'7" tall, weighs 170 pounds, with black hair and brown eyes, and was 32 years old at the time of the incident.*
- *PO James St. Germain worked from 11:15 p.m. on March 16, 2015 to 7:50 a.m. on March 17, 2015. He was in plainclothes and assigned to anti-crime in the 105th Precinct with PO Ryan Hoffman and PO Ryan Scannell in an unmarked car.*

Memo Book

PO St. Germain has no entries in his memo book regarding this incident.

CCRB Testimony

On June 17, 2015, PO James St. Germain was interviewed at the CCRB in regards to case #201502193.

On March 17, 2015, at 3:30 a.m., PO James St. Germain and his partners were conducting regular patrol. PO St. Germain did not recall what happened in the course of the incident. It was explained to PO St. Germain that officers entered a UPS facility at [REDACTED] (with the cross street at [REDACTED]) in pursuit of the driver of a vehicle. Officers then approached [REDACTED] inside the facility and interacted with him. PO St. Germain was shown a photograph of [REDACTED] taken at the CCRB and did not recognize him. PO St. Germain denied having called [REDACTED] a punk, pussy, or prick, and did not hear another officer do so. PO St. Germain did not tell anyone to back the fuck up and he did not hear another officer do so. PO St. Germain did not shove [REDACTED] to the ground and did not observe another officer do so. Surveillance footage was reviewed with PO St. Germain and PO St. Germain was unable to identify himself as one of the officers walking past the camera frame.

End – 10:16 a.m.

Interview Details

Transcript for interview with PO RYAN HOFFMANN

Start – 11:34 a.m.

Witness Officer: PO RYAN HOFFMANN

- *PO Ryan Hoffmann is a Caucasian male, 6'1" tall, weighs 225 pounds, with brown hair and blue eyes, and was 28 years old at the time of the incident.*
- *PO Ryan Hoffmann worked from 11:15 p.m. on March 16, 2015 to 7:50 a.m. on March 17, 2015. He was in plainclothes and assigned to anti-crime in the 105th Precinct with PO Ryan Scannell and PO James St. Germain in unmarked car # [REDACTED] as the recorder.*

Memo Book

There are no entries in PO Hoffmann's memo book regarding this incident.

CCRB Testimony

On July 6, 2015, PO Ryan Hoffmann was interviewed at the CCRB in regards to case #201502193.

On March 17, 2015, at 3:30 p.m., PO Ryan Hoffmann and his partner were conducting routine patrol. PO Hoffmann did not recall being involved in any vehicle chases during his tour and explained that if he had, it would have been noted in his memo book. PO Hoffmann denied entering the UPS facility at [REDACTED] in Queens during his tour. PO Hoffmann was shown a picture of [REDACTED] taken at the CCRB and did not recognize him. It was explained to PO Hoffman that three officers had entered the UPS facility in search of an individual and approached [REDACTED] calling him a punk pussy, and a prick. PO Hoffmann denied calling [REDACTED] a punk, pussy, or a prick, and did not hear another officer do so. PO Hoffmann did not tell [REDACTED] "fuck you," and did not hear another officer do so. PO Hoffman did not tell [REDACTED] supervisor, [REDACTED] to "back the fuck up" and did not hear another officer do so. PO Hoffmann did not push [REDACTED] and did not observe another officer do so.

End – 11:41 a.m.